

24CHCV02832 24CHCV02832

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-06-29

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Case Number: 24CHCV02832 Hearing Date: June 29, 2026 Dept: F49

Dept. F49

Date: 6/29/26

Case Name: Sandy Esparza; Jose Esparza; Crystal

Esparza; and Sean Esparza vs. Legacy Partners Waterstone LP; and Does 1-20

Case No. 24CHCV02832

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JUNE 29, 2026

PETITION TO

APPROVE COMPROMISE OF DISPUTED CLAIM FOR MINOR

Los Angeles Superior

Court Case No. 24CHCV02832

Petition filed: 5/29/26

MOVING PARTY: Plaintiff Sean Esparza, by and through
his parent and guardian ad litem, Petitioner Sandy Esparza

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Petitioner seeks the Court’s approval of the settlement that her minor child, Plaintiff and Claimant, Sean Esparza, reached with Defendant.

TENTATIVE RULING: The Petition is GRANTED.

BACKGROUND

This action arises from the alleged constructive eviction of Plaintiffs from their apartment. On August 5, 2024, Plaintiffs Sandy Esparza (“Petitioner”), Jose Esparza, Crystal Esparza (“Crystal”), and Sean Esparza (“Sean”) (collectively, “Plaintiffs”), filed the Complaint against Defendants Legacy Partners Waterstone LP (“Legacy Partners”) and Does 1 through 20, alleging the following causes of action: (1) negligence, (2) breach of implied warranty of habitability, and (3) constructive eviction. On October 24, 2024, Plaintiffs filed a fictitious name amendment to the Complaint, naming Waterstone Owner LP (“Waterstone”) as Doe 1. On May 19, 2025, at the request of Plaintiffs, Legacy Partners was dismissed from the action.

On January 6, 2025, Waterstone filed an Answer.

On June 8, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On May 29, 2026, Petitioner filed the instant Petition for Approval of Compromise of Claim on behalf of Sean (the “Petition”).

No opposition or objection to the Petition has been filed.

ANALYSIS

Rule/Requirement/Component

Application

Comments

Claimant (minor)

Sean Esparza

DOB: 7/2/10, age: 15

Guardian ad Litem¿

Sandy Esparza

Parent, GAL

status granted 8/5/24

Settlement (Total)¿

\$5,000.00 (MC-350, ¶ 10a)¿¿

Injuries¿

Skin rashes and insect bites on chest and arm, and emotional distress. (MC-350, ¶ 6)

¿

Medical treatment received?¿

None. (MC-350, ¶ 7.)

¿

Completely healed of injuries?¿

Yes. (MC-350, ¶ 8a)¿

Medical Expenses Incurred (Total)¿

\$0.00 (MC-350 ¶ 12a(1))¿

Medical Bills (Documentation)¿

N/A.

Outstanding medical payments owed from proceeds¿

\$0.00 (MC-350, ¶ 12a(4))¿

Provider Liens (Documentation)¿

N/A

Negotiated Lien Reductions?¿

N/A

Documentation of lien reductions¿

N/A

¿

Attorney Fees¿

\$1,250.00 (25% of \$5,000.00) (MC-350, ¶ 13a)

The Court finds
the requested fees to be reasonable.

Declaration of fees and copy of retainer? (Cal. Rules of
Court, rule 7.955(b).)¿

Yes. (MC-350, Attach. 13a,
Brinton Decl.; Attach. 17a(2).)

Litigation Costs¿

None. (MC-350, ¶ 13b)¿

Are the costs itemized and reasonable?¿

N/A. (MC-350, Attach. 13b)

Total to be paid to minor¿

\$3,750.00 (MC-350, ¶ 15)

Blocked account?¿

No. (MC-350, ¶ 18b(5).)

Total to be delivered to parent, Sandy Esparza. Value of minor's estate consists solely of the settlement amount.

(MC-350, ¶ 18b(5), Attach. 18b(5).)

Proposed order to approve compromise is congruent with
Petition?¿

No. (MC-351.)

Gross
settlement amount and balance for claimant misstated in proposed order.
(MC-351, ¶¶ 6, 8b.)

Proposed order to deposit funds is congruent with
Petition?¿

N/A.¿

Disposition¿

GRANTED.

¿

After thoroughly reviewing the Petition and supporting

documents, the Court is satisfied that the proposed settlement is fair, reasonable, and in the best interests of the minor. However, the proposed order, Judicial Council Form MC-351, is incongruent with the Petition.

The Court accordingly GRANTS the Petition, conditioned upon Petitioner submitting an amended order within five days. Upon timely compliance, the Court will enter the order without further hearing.

CONCLUSION

The Petition for Approval of Compromise of Claim, filed by Petitioner Sandy Esparza on behalf of Plaintiff and Claimant, Sean Esparza is GRANTED, conditioned upon Petitioner submitting an amended Judicial Council Form MC-351 within five days.

Moving party to give notice.